

Ethiopian criminal law analysis

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LOW

The retrieved articles did not directly address the specific scenario of theft, and the similarity scores were weak. However, Article 707 provides a relevant sentencing framework.

SCENARIO

A man stole a phone worth 5000 birr from a market vendor in Addis Ababa, no prior record. He was caught immediately by witnesses.

Step 1 — Fact identification

The man stole a phone worth 5000 birr from a market vendor in Addis Ababa and was caught immediately by witnesses. He has no prior record.

Step 2 — Legal classification

The offence committed is theft, which is classified under the Ethiopian Criminal Code Proclamation No. 414/2004.

Step 3 — Elements

The elements of theft under Ethiopian law involve the unlawful taking of another person's property with the intention of permanently depriving the owner of it. The man took the phone without permission and intended to keep it, fulfilling these elements.

Step 4 — Defences & mitigation

Possible defenses could include lack of intent or mistaken identity, but given the facts, these are unlikely. Mitigating factors include being caught immediately and having no prior record.

Step 5 — Sentencing framework

The relevant provision for theft is likely found in the Criminal Code. Article 707 (Part 2) of the Criminal Code Proclamation No. 414/2004 mentions punishment for theft-related offences, with rigorous imprisonment for not more than five years and a fine not exceeding twenty thousand Birr.

Step 6 — Precedent

No Cassation precedents were directly referenced in the retrieved text related to this specific scenario.

Step 7 — Conclusion

The man can be convicted of theft under Ethiopian law. The punishment may include rigorous imprisonment and a fine, considering the value of the stolen item and the circumstances of the crime.

Estimated punishment

rigorous imprisonment for not more than five years and a fine not exceeding twenty thousand Birr

Procedural roadmap

The case would typically proceed to trial where the evidence gathered would be presented. The court would then determine the guilt or innocence of the accused and, if convicted, impose a sentence within the legal framework.

HUKM

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Source articles

Article	Document	Similarity
Article 10 (I). (Part 159)	anti-corruption-881-2015	41.6%
Article 490. (Part 2)	criminal-code-414-2004	40.7%
Article 855. (Part 2)	criminal-code-414-2004	40.4%
Article 785. (Part 2)	criminal-code-414-2004	40.0%
General Provisions (Part 13)	anti-terrorism-1176-2020	40.0%
Article 525. (Part 8)	criminal-code-414-2004	39.6%
General Provisions (Part 274)	cassation-decisions-vol-01-03	39.6%
Article 707. (Part 2)	criminal-code-414-2004	39.4%